

Amendment No. 1 to HB0958

White
Signature of Sponsor

AMEND Senate Bill No. 950

House Bill No. 958*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) There is created a federal education deregulation cooperation task force to prepare this state for the potential of deregulation of federal laws, regulations, requirements, and guidance for kindergarten through grade twelve (K-12) education.

The task force consists of seven (7) members to be appointed as follows:

(1) The chair of the standing committee of the house of representatives with jurisdiction over subject matters pertaining to K-12 education;

(2) Two (2) members of the house of representatives who are appointed by the speaker of the house of representatives;

(3) The chair of the education committee of the senate;

(4) Two (2) members of the senate who are appointed by the speaker of the senate; and

(5) One (1) member who is a licensed educator in this state who is appointed by the governor.

(b) The appointing authorities shall make appointments to the task force no later than July 1, 2025.

(c) The chair of the senate education committee shall convene the task force for its first meeting no later than August 1, 2025. The task force shall elect a chair and vice chair.

(d)

(1) The chair of the task force shall:

(A) Preside over meetings; and

(B) Ensure timely compliance with this section.

(2) The vice chair of the task force shall fulfill the duties of the chair in the chair's absence or if the chair is unable to perform the chair's duties.

(3) Members of the general assembly serve without compensation, except for the mileage and per diem allowance that is provided by the general assembly in accordance with § 3-1-106. Nonlegislative members serve without compensation, but, when engaged in the conduct of their official duties, are entitled to reimbursement for travel expenses in accordance with the comprehensive state travel regulations as promulgated by the commissioner of finance and administration and approved by the attorney general and reporter.

(e) The general assembly staff, state board of education, department of education, department of finance and administration, LEAs, and the office of legislative budget analysis shall assist the task force in discharging the task force's duties in this section as requested by the chair of the task force.

(f) The task force shall:

(1) Identify all federal funding allocated to the department of education and LEAs in this state for the previous fiscal year for kindergarten through grade twelve (K-12) education, specifying the federal program from which any such funds are allocated, the uses of the allocations by the department or LEAs, and the amount of the allocations;

(2) Identify the federal requirements that the state or an LEA must comply with in order to receive the federal funding identified in subdivision (f)(1);

(3) Identify the state and LEA obligations and resources that are necessary in order to receive the federal funding identified in subdivision (f)(1);

(4) Identify the number of state and local employment positions funded through the federal allocations identified in subdivision (f)(1); and

(5) Consider whether the programs or resources provided using the federal funding identified in subdivision (f)(1) should be continued at the state level if the federal funding is eliminated.

(g)

(1) The task force shall compile and submit a report of the task force's findings in subsection (f) and make recommendations on how this state should proceed if significant changes in kindergarten through grade twelve (K-12) education are made at the federal level to the general assembly by December 31, 2025. The report must be submitted to the speaker of the senate, the speaker of the house of representatives, the chief clerk of each house of the general assembly, and the legislative librarian. The task force ceases to exist upon the task force's submission of the report required in this subsection (g).

(2) Notwithstanding subdivision (g)(1) to the contrary, the speaker of the senate and the speaker of the house of representatives may jointly direct the legislative members of the task force to continue the work of the task force, as prescribed jointly by the speakers.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.